

25STCV14710 25STCV14710

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Case Number: 25STCV14710 Hearing Date: August 3, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Plaintiff's Motion for Attorney Fees and Costs

Plaintiff's Motion for Attorney Fees and

Costs is granted in the reduced amount of \$23,017.45.

BACKGROUND

Plaintiff Helen Rasho (Plaintiff) filed this action against General Motors, LLC (Defendant), alleging that he purchased a 2023 Cadillac Escalade for personal, family, or household purposes and that Defendant failed to conform the vehicle to its express and implied warranties after a reasonable number of repair attempts.

The causes of action are: (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Consumer Warranty Act; and (2) Breach of Express Warranty under the Song-Beverly Consumer Warranty Act.

Defendant served an offer to compromise under Code of Civil Procedure section 998 for \$150,000, inclusive of any loan payoff, in exchange for the vehicle. The offer provides that Defendant agrees Plaintiff is the prevailing party and that Plaintiff's attorney fees, expenses, and costs reasonably incurred under Civil Code section 1794, subdivision (d) may be determined by the Court on noticed motion. Plaintiff accepted the offer on January 26, 2026. (Barry Decl., ¶ 8, Ex. 1.) The action was dismissed. (Barry Decl., Ex. 2, entry dated April 6, 2026.)

Plaintiff filed a Motion for Attorney Fees

and Costs seeking a lodestar of \$29,178.00, a 0.1 multiplier of \$2,917.80, and costs of \$2,493.37, for a total of \$34,589.17. (Motion, p. 14:10-15.) Defendant filed an Opposition. Plaintiff filed a Reply.

LEGAL STANDARD

A prevailing party is entitled to recover

costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b).)

Attorney fees are recoverable as costs when authorized by statute. (Code Civ. Proc., § 1033.5, subd. (a)(10)(B).) Under the Song-Beverly Consumer Warranty Act, a buyer who prevails “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

The fee inquiry begins “with the ‘lodestar,’

i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate,” and the reasonable hourly rate is “that prevailing in the community for similar work.” (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The prevailing buyer bears the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470.) Trial courts “must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) Where a request is excessive, the Court “has broad discretion to adjust the fee downward or deny an unreasonable fee altogether.” (Id. at p. 1138.)

The lodestar may be adjusted by a multiplier

based on “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at p. 1132.) The party seeking an enhancement bears the burden of proof, and the Court “should not consider these factors to the extent they are already encompassed within the lodestar.” (Id. at p. 1138.)

ANALYSIS

I. Prevailing Party

Defendant agreed in its statutory offer that Plaintiff is the prevailing party and that Plaintiff's reasonably incurred fees, costs, and expenses under Civil Code section 1794, subdivision (d) would be fixed by the Court on noticed motion. (Barry Decl., ¶ 8, Ex. 1, ¶ 2.) Entitlement is not disputed.

II. Hourly Rates

"In determining hourly rates, the court must look to the 'prevailing market rates in the relevant community.' [Citation.] ... In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. [Citation.] The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. [Citation.] 'Affidavits of the plaintiffs' attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate.' [Citation.]" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Because lemon law cases are typically brought on a contingency basis, the Court considers that factor in determining the reasonable hourly rate. (See Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395 ["The contingency adjustment may be made at the lodestar phase of the court's calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both)."].)

Plaintiff seeks \$695.00 for Mr. Barry, \$600.00 for Mr. Storti, \$550.00 for Mr. Hayes, \$450.00 for Mr. Kim, and \$350.00 for Mr. Derhartounian. (Barry Decl., ¶¶ 10, 17, Ex. 2.) Mr. Barry has practiced for 24 years, 21 of them in consumer warranty law, and identifies fourteen matters in which his \$695.00 rate was approved, together with a canvass of comparable practitioners charging between \$525.00 and \$750.00. (Barry Decl., ¶¶ 17-18, 21, 25-38.) Based on the evidence presented and the Court's own knowledge of the Los Angeles legal market for similar legal work, the rates are

approved as requested.

III. Hours Reasonably Expended

Plaintiff claims 54.9 hours totaling \$29,178.00. (Barry Decl., ¶ 11, Ex. 2.) Defendant seeks reductions of 33.8 hours and \$20,278.75 across eight categories. (Opposition, p. 10:12-23.)

Plaintiff argues that Defendant failed to carry its burden because it did not produce its own time entries and relies on counsel's opinion. (Reply, p. 2:17-22.) A party opposing a fee request need not produce its own billing records. Defendant's objections identify specific entries by date and task and are supported by the Kay declaration and its exhibits, which compare Plaintiff's initial disclosures and fee motion with those served and filed in other matters against Defendant. (Kay Decl., ¶¶ 6-11, Exs. A-D.) Verified time statements remain entitled to credence in the absence of a clear indication that the records are erroneous (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396), and the Court has applied that presumption to each entry.

A. Pre-Engagement Time

Defendant asks the Court to strike 2.9 hours (\$1,015.00) billed on April 17, 21, 24, and 25, 2025, before Plaintiff retained the firm, on the ground that evaluating a prospective client is a cost of doing business. (Opposition, p. 3:27-28, p. 4:1-5.) The April 25, 2025 entry, 0.3 hours to prepare the representation agreement, is marked as non-billable and not included in the lodestar, so the time at issue is 2.6 hours (\$910.00). (Barry Decl., Ex. 2, entries dated April 17, 21, 24, and 25, 2025.)

Work performed before the complaint is filed is compensable where it was reasonable and necessary to the litigation. (*Hogar Dulce Hogar v. Community Development Com. of City of Escondido* (2007) 157 Cal.App.4th 1358, 1370.) The entries are two conferences with Plaintiff about the claim (1.6 hours) and a review of the repair orders, with research into technical service bulletins and recalls for this vehicle (1.0 hour). The recall and repair history is the factual core of the pleading. (Complaint, ¶ 10.) The objection is overruled.

B. Initial Disclosures

Defendant asks for a 1.1 hour (\$385.00)

reduction of the 1.8 hours (\$630.00) billed to prepare Plaintiff's initial disclosures and review Defendant's, arguing that 15 minutes and 30 minutes, respectively, would suffice because both sets are templates. (Opposition, p. 4:6-18; Kay Decl., ¶¶ 7-8, Exs. A, B.) The 1.0 hour entry covers the disclosure statement and the assembly of a seven-category document production including the purchase contract, registration, payment history and payoff quote, repair orders, and incidental damages documentation. (Barry Decl., Ex. 2, entry dated July 25, 2025; Kay Decl., Ex. A.) The 0.8-hour entry covers review of Defendant's disclosures and production. (Barry Decl., Ex. 2, entry dated September 5, 2025.)

Use of a form does not make the work

uncompensable. The exhibits Defendant offers show responses particular to this vehicle's mileage, driver, and possession. (Kay Decl., Exs. A, B.) A total of 1.8 hours for both tasks is reasonable. The objection is overruled.

C. Opposition

to the Motion for Protective Order

Defendant asks the Court to strike 4.4 hours

(\$1,540.00) billed to review its motion for entry of a protective order, oppose it, and track the hearing, arguing the work was made necessary by counsel's refusal to stipulate. (Opposition, p. 4:19-28, p. 5:1-2; Kay Decl., ¶ 6.)

Defendant elected to file the motion and later withdrew it. (Barry Decl., Ex. 2, entry dated January 30, 2026.) A party may recover for opposing a motion its adversary chose to file, and Defendant offers no authority permitting the Court to deny fees because Plaintiff declined to stipulate to relief he was entitled to contest.

The amount is a separate question. Of the

4.4 hours, 2.1 hours were billed on August 29, 2025, to review the moving papers: 1.4 hours for the notice and motion, 0.4 and 0.2 hours for the two supporting declarations, and 0.1 hour for the proposed order. (Barry Decl., Ex. 2, entries dated August 29, 2025.) Defendant describes the motion as brief and standard, and Plaintiff does not contend otherwise. Two hours of review preceding a 1.8 hour opposition exceeds what the papers required. The Court reduces the review time by 1.0 hour (\$350.00) and otherwise overrules the objection.

D. Travel to Plaintiff's Deposition

Defendant asks the Court to strike 3.1 hours (\$1,085.00) billed for travel to and from Plaintiff's deposition on the ground that travel is overhead. (Opposition, p. 5:3-6; Barry Decl., Ex. 2, entries dated November 21, 2025.) Section 1794, subdivision (d) reaches time reasonably incurred in the prosecution of the action, and defending the client's deposition required counsel to be present. Defendant cites no authority excluding travel time from a statutory fee award. The objection is overruled.

E. Order to Show Cause re Dismissal

Defendant asks the Court to strike 2.8 hours (\$1,540.00) that Mr. Hayes billed to prepare for, travel to, attend, and return from the order to show cause hearing regarding dismissal. (Opposition, p. 5:7-17.) The 0.5 hour entry for reviewing the file in preparation, which Defendant singles out, is marked non-billable and is not in the lodestar. (Barry Decl., ¶ 10(d), Ex. 2, entry dated April 4, 2026.) The billed time within Defendant's objection is 0.8 hours of travel, 0.7 hours of appearance, and 0.8 hours of return travel, a total of 2.3 hours (\$1,265.00). (Id., entries dated April 6, 2026.)

The Court set the hearing after Plaintiff filed the notice of settlement, and the record does not show that any delay by Plaintiff caused it. Appearance was required. The objection is overruled.

F. Client Communications

Defendant asks the Court to halve the post-filing time billed for communications with Plaintiff about case status, a reduction of 2.4 hours (\$1,511.25) from the 4.8 hours (\$3,022.50) it identifies, and argues that the partner billing at the highest rate should not have handled routine status contact. (Opposition, p. 5:18-26.) Keeping a client informed is compensable, and the allocation of that task is not, by itself, a ground for reduction, where Mr. Barry held day-to-day responsibility for the matter and conducted the settlement negotiations.

Three exchanges are billed twice. On October 7, 2025, January 27, 2026, and March 9, 2026, Mr. Barry billed 0.2 hours to

review an email from Plaintiff and a separate 0.2 hours to answer it, 1.2 hours and \$834.00 for three status emails. (Barry Decl., Ex. 2, entries dated October 7, 2025, January 27, 2026, and March 9, 2026.) A single 0.2 hour entry for each exchange is reasonable. The Court reduces this time by 0.6 hours (\$417.00) and otherwise overrules the objection.

G. Fee Motion

Defendant asks the Court to strike 8.7 hours (\$7,364.50) of the time devoted to this Motion, allowing 1.0 hour to prepare it, 1.0 hour to review the Opposition and prepare a reply, and 1.0 hour to attend the hearing. (Opposition, p. 5:27-28, p. 6:1-12.) Defendant states the time at issue as 11.7 hours (\$9,449.50), but that dollar figure includes the 2.0 hour entry for reviewing an anticipated motion to tax costs, which Defendant challenges separately and Plaintiff has withdrawn. The fee motion entries total 9.7 hours and \$8,059.50. (Barry Decl., Ex. 2, entries dated May 13, 2026, June 4, 2026, July 31, 2026, August 3, 2026, and the undated entries for reviewing the Opposition and preparing the Reply.) A prevailing party may recover for time spent establishing and defending the fee claim. (Ketchum, *supra*, 24 Cal.4th at p. 1133.)

Defendant separately objects that roughly half of the fee-motion time, about 6.0 hours, had not been incurred when the Motion was filed. (Opposition, p. 6:5-6.) Defendant filed the Opposition on July 21, 2026, and Plaintiff filed the Reply on July 27, 2026, so the entries for reviewing the Opposition and preparing the Reply reflect work since performed. The remaining entries are for preparing for and appearing at the hearing on this Motion. Time reasonably spent litigating the fee claim is compensable.

Three entries are excessive.

Mr. Barry billed 1.0 hour at \$695.00 to prepare the Judicial Council memorandum of costs and worksheet. Those are fill-in forms supported by a one-page attachment. 0.4 hours is reasonable, a reduction of 0.6 hours (\$417.00).

Mr. Barry billed 2.0 hours to prepare the Reply. Sections I and II of the Motion anticipated Defendant's arguments and set out the responses to them, and the corresponding passages of the Reply

reproduce that text nearly verbatim, including the sentence beginning “In an attempt to challenge Plaintiff’s fees and to portray them as unreasonable” and the accounting of two hours each for the motion, the opposition review, and the reply. (Motion, p. 7:14-25; Reply, p. 3:19-26.) The travel discussion is likewise carried over without material change. (Motion, p. 9:18-25; Reply, p. 5:3-11.) One hour is reasonable for the material actually added, a reduction of 1.0 hour (\$695.00).

Mr. Barry billed 1.0 hour to prepare for the hearing after drafting both the Motion and the Reply. Five tenths of an hour is reasonable, a reduction of 0.5 hours (\$347.50).

Defendant’s objection to the 2.0 hours of travel to and from the hearing is overruled for the reasons stated above as to deposition travel. The remaining entries, including the 2.0 hours to prepare the Motion, are allowed. That the Motion follows a form counsel uses in other matters against Defendant does not make two hours excessive. (Kay Decl., ¶ 10, Ex. C.) The fee motion time is reduced by 2.1 hours (\$1,459.50).

H.

Anticipated Time on a Motion to Tax Costs

Defendant asks the Court to strike 8.4 hours (\$5,838.00) of anticipated time for opposing a motion to tax costs that Defendant never filed. (Opposition, p. 6:13-19.) Plaintiff withdraws that time. (Reply, p. 2:1-3.) The 8.4 hours are deducted.

The reductions total 12.1 hours and \$8,064.50. The lodestar is \$21,113.50, reflecting 42.8 hours.

IV. Multiplier

Plaintiff requests a 0.1 multiplier, \$2,917.80 as sought in the Motion and \$2,334.00 as recalculated in the Reply, on the grounds that counsel advanced all costs and deferred payment on a contingency while defense counsel was paid monthly, and that the result was exceptional. (Motion, p. 6:12-28; Reply, p. 8:16-17.) The lodestar adjustment method, including the use of a fee multiplier, applies to awards under Civil Code section 1794, subdivision (d). (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818-819.)

Plaintiff also points to Defendant's refusal to resolve fees informally and to the eight months that passed before Defendant made its offer. (Motion, p. 3:18-20; Barry Decl., ¶¶ 6-8.) Conduct by the opposing party bears on whether the hours claimed were reasonably incurred, which the Court has considered in reviewing the entries, not on whether the lodestar understates the value of the services performed.

The Ketchum factors do not support an enhancement here. The action presented the ordinary question of whether the vehicle conformed to the warranty after a reasonable number of repair attempts, and it resolved on an accepted statutory offer eight months after filing, with no dispositive motion and no trial. The only contested law and motion was Defendant's protective order motion, which Defendant withdrew. Counsel identifies nothing in this case that calls for unusual skill and describes a practice concentrated in this claim type. (Barry Decl., ¶ 18; Kay Decl., ¶¶ 12-13.) Plaintiff offers no evidence that the representation precluded other employment.

Contingent risk and delay in payment are already reflected in the lodestar. Plaintiff asks the Court to compensate that delay by applying current rates rather than historical ones. (Motion, p. 6:18-25.) Compensation at current rates answers the delay for which the enhancement is sought, and counting it a second time in a multiplier would be double counting. (Ketchum, *supra*, 24 Cal.4th at p. 1138.) The request for a multiplier is denied.

V. Costs

Plaintiff seeks \$2,493.37 in costs.

Plaintiff argues that because Defendant did not serve and file a motion to strike or tax costs within 15 days of service of the memorandum of costs, the Court must award the costs claimed in full. (Reply, p. 8:3-8; Cal. Rules of Court, rule 3.1700(b)(1), (b)(4).) Plaintiff did not rest on the memorandum of costs. Plaintiff placed the same \$2,493.37 before the Court as part of the relief requested in this Motion, invoking the Court's determination under Civil Code section 1794, subdivision (d) and under the terms of the accepted offer which explicitly provides that "Plaintiffs' attorney's fees, expenses and costs that have been reasonably incurred may be

determined by the Court via noticed motion.” (Motion, p. 14:14; Barry Decl., ¶ 8, Ex. 1, ¶ 2.) Defendant’s objections are considered.

Where the items on a verified memorandum appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden falls on the objecting party; where items are properly put in issue, the burden of proof rests on the party claiming them. (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

A. Jury Fees

Defendant objects to \$150.00 in jury fees because no jury was empaneled, no notice of posting jury fees appears of record, and nothing shows the fee was paid. (Opposition, p. 9:3-9.) Jury fees are an enumerated cost. (Code Civ. Proc., § 1033.5, subd. (a)(1).) The record answers both grounds of the objection. An electronic filing service provider’s invoice dated September 5, 2025, shows the Case Management Statement and the Notice of Posting of Jury Fees filed with the Court, and \$150.00 in court fees advanced. (Barry Reply Decl., Ex. 2, invoice no. 12803039.) A jury fee posted to preserve the right to a jury trial is reasonably necessary to the conduct of the litigation, even if the case is resolved before trial. The objection is overruled.

B. Court Reporter Fees

Defendant objects to \$550.00 in court reporter fees claimed for the hearing on this Motion. (Opposition, p. 9:10-13.) Costs are allowable “if incurred, whether or not paid.” (Code Civ. Proc., § 1033.5, subd. (c)(1).) The worksheet names no reporter and states no fee arrangement, and the memorandum was verified on June 4, 2026, two months before the hearing. (Barry Decl., Ex. 4, Worksheet, item 11.) Plaintiff filed with the Reply all invoices in counsel’s possession for the claimed cost items, and none is for a court reporter. (Barry Reply Decl., ¶ 4, Ex. 2.) Nothing shows the fee has been incurred. The objection is sustained, and \$550.00 is stricken.

C. Electronic Filing Fees

Defendant objects to \$99.91 in electronic filing and service fees as unexplained, and asserts that the billing records show no filing other than the notice of settlement. (Opposition, p. 9:14-22.)

Fees for electronic filing or service through an electronic filing service provider are allowable where the court requires electronic filing. (Code Civ. Proc., § 1033.5, subd. (a)(14).) Electronic filing is required in this Court. Five electronic filing service provider invoices predating the verification of the memorandum document the claim to the penny: the Complaint, civil case cover sheet, and summons (\$30.49); the proof of personal service (\$15.27); the Case Management Statement and Notice of Posting of Jury Fees (\$21.55); the opposition to Defendant's protective order motion (\$16.30); and the Notice of Settlement of Entire Case (\$16.30), together \$99.91. (Barry Reply Decl., Ex. 2, invoice nos. 12022148, 12193592, 12803039, 13381881, 13964593.) A sixth invoice, covering this Motion and the memorandum of costs, postdates the memorandum and is not claimed. The objection is overruled.

D. Mileage and Parking

Defendant objects to \$149.06 of the \$441.56 claimed as other costs, consisting of mileage and parking. (Opposition, p. 9:23-27, p. 10:1-2; Barry Decl., Ex. 4, Worksheet, item 15.) Of that sum, \$30.80 is mileage to and from Plaintiff's deposition, which is an enumerated cost. (Code Civ. Proc., § 1033.5, subd. (a)(3)(C).) The remaining \$118.26 is mileage and parking for three court appearances at \$39.42 each: the order to show cause hearing, the hearing on this Motion, and a hearing on a motion to tax costs.

Items not mentioned in section 1033.5 may be allowed in the Court's discretion, and section 1794, subdivision (d) permits recovery of costs and expenses beyond those section 1033.5 enumerates. (Code Civ. Proc., § 1033.5, subd. (c)(4); Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138, disapproved on another ground in Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189.) The expenses incurred in appearing at the order to show cause hearing and at the hearing on this Motion were reasonable and are allowed. No motion to tax costs was filed, and no hearing on one will be held, so the \$39.42 attributed to that hearing has not been incurred. The objection is sustained as to \$39.42 and otherwise overruled.

Costs are awarded in the reduced amount of \$1,903.95.

CONCLUSION

For the reasons stated above, Plaintiff's

Motion for Attorney Fees and Costs is granted in the reduced amount of

\$23,017.45, consisting of \$21,113.50 in attorney fees and \$1,903.95 in costs.